

2017 P L C (C.S.) 528

[Lahore High Court]

Before Jawad Hassan, J

ISHAQ MASIH----Petitioner

Versus

DISTRICT COORDINATION OFFICER and others----Respondents

Writ Petition No.14672 of 2012, decided on 11th January, 2017.

(a) Civil service---

---One employee challenging the reinstatement order of another employee by the department---Validity---Petitioner employee was not aggrieved of order passed by the department---No Fundamental Right of petitioner employee had been infringed through the impugned order---Petitioner employee had to establish that his legal or Fundamental Right guaranteed under the Constitution had been violated to be an aggrieved person---Petitioner had to prove his locus standi to seek direction for initiation of action against the private respondent under the denial of his legal right if any---Impugned order related to private respondent only which had nothing to do with the petitioner---Petitioner was not an aggrieved person to approach the High Court under Art.199 of the Constitution---Constitutional petition was dismissed in circumstances.

Mian Fazal Din v. Lahore Improvement Trust, Lahore PLD 1969 SC 223; Montgomery Flour and General Mills Ltd., Montgomery v. Director, Food Purchases, West Pakistan and others PLD 1957 (W.P) Lah. 914; Dr. Imran Khattak and another v. Ms. Sofia Waqar Khattak, PSO To Chief Justice and others 2014 SCMR 122; Hafiz Hamadullah v. Saifullah Khan and others PLD 2007 SC 52 and N.W.F.P. Public Service Commission and others v. Muhammad Arif and others 2011 SCMR 848 rel.

(b) Words and phrases---

---'Aggrieved party' and 'aggrieved person'---Distinction.

Judicial Review of Public Action by Mr. Justice (R) Fazal Karim at page 977 Volume 2 rel.

Abdul Hafeez Ansari for Petitioner.

Ashfaq Ahmad Kharral, Asstt. A.-G.

ORDER

JAWAD HASSAN, J.--- Through the instant Constitutional petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has prayed for setting aside the order dated 15.05.2012 passed by the

Respondent No.1 whereby the Respondent No.6 has been reinstated in service.

2. Brief facts of the case are that the Petitioner and the Respondent No.6 are serving in the Office of the Respondent No.4/TMA Kamonki and the Respondent No.4 is the Union President of the Sanitary Workers. On the application of one Ashiq Mashi, Sanitary Worker an inquiry was conducted against the Respondent No.6 for illegal gratification from the Sanitary Workers in which he was found to be guilty of the allegation and ordered for compulsory retirement from service on 06.07.2011. Against his compulsory retirement order the Respondent No.6 filed an appeal before the Respondent No.1 who set aside the same on 15.05.2012 and ordered for reinstatement in service through impugned order. Hence, the instant petition.

3. Learned counsel for the Petitioner submitted that the impugned order by the Respondent No.1 is illegal as he himself ordered for initiation of inquiry against the Respondent No.6. Learned counsel also contended that no appeal can be filed before the Respondent No.1 as inquiry proceedings were initiated by him. Learned counsel also argued that after proper inquiry the allegation of bribery has been proved against the Respondent No.6, therefore, he did not deserve any leniency, as such, the impugned order is liable to be set aside.

4. Through the instant petition the Petitioner has sought setting aside of impugned order dated 15.05.2012 passed by the Respondent No.1 and registration of a criminal case against the Respondent No.6.

5. From the perusal of record it reveals that the Respondent No.6, in result of an inquiry initiated against him, was punished to compulsory retirement against which he filed a representation before the Respondent No.1 who, through impugned order, while accepting the same ordered for reinstatement of the Respondent No.6 in service. Nowhere from the record, it is established that the Petitioner is aggrieved of any order of the Respondent No.1 or his fundamental rights have been infringed through the impugned order. The Petitioner, through the instant petition has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution, therefore, he has to establish that his legal or fundamental right guaranteed under the Constitution has been violated to be an aggrieved. Similarly, the Petitioner has to prove his locus standi to seek direction for initiation of action against the Respondent No.1 under the denial of his legal right, if any.

6. It is sine qua non for initiation of proceedings under Article 199 of the Constitution that the Petitioner should have a locus standi to institute the proceedings or in other words the Petitioner should be an aggrieved party from the action of the Respondents. Pivotal judgment of the apex Court on this issue is Mian Fazal Din v. Lahore Improvement Trust, Lahore (PLD 1969 SC 223) and the Lahore High Court titled Montgomery Flour and General Mills Ltd., Montgomery v. Director, Food Purchases, West Pakistan and others (PLD 1957 (W.P) Lahore 914) wherein it was observed that for a person to have locus standi to initiate a petition for issuance of writ, he must have some right in the matter and he need not have a right in that strict sense of the term which is provided in Article 170 of the Constitution. In the case titled Dr. Imran Khattak and another v. Ms. Sofia Waqar Khattak, PSO To Chief Justice and others (2014 SCMR 122) the Hon'ble Supreme Court of Pakistan held as follows:

"It would exercise such jurisdiction under Article 199 (1)(a)(i), (ii) and (c) on the application of an aggrieved person while under 199(1)(b)(i) and (ii) on the application

of any person whether aggrieved or not, and not on an information or on its own knowledge. In the case of "Tariq Transport Company, Lahore v. Sargodha Bhera Bus Service and others" (PLD 1958 SC (Pak) 437), this Court held that a High Court was not competent merely on an information or on its own knowledge to commence certiorari proceedings or other proceedings of a similar nature under Article 170 of the Constitution of Islamic Republic of Pakistan, 1956. In the case of "Fazl-e-Haq, Accountant General, West Pakistan v. The State" (PLD 1960 SC (Pak) 295), this Court reiterated the view by holding that the extraordinary jurisdiction relating to a writ could only be exercised by the High Court when moved by a party whose legal rights have been denied"

Moreover, in Hafiz Hamadullah v. Saifullah Khan and others (PLD 2007 SC 52) the apex Court held as follows:

"With regard to the first objection it may be noted that under Article 199(1)(a) of the Constitutional jurisdiction of the High Court can be invoked by an aggrieved person which denotes a person who has suffered a legal grievance, against whom a decision has been pronounced which has wrongfully deprived him or wrongfully refused him something which he was legally entitled to. It is also the requirement that the person invoking the constitutional jurisdiction under Article 199 of the Constitution has to establish that any of his legal or fundamental right guaranteed under the Constitution has been violated resulting in legal loss."

Further, in N.W.F.P. Public Service Commission and others v. Muhammad Arif and others (2011 SCMR 848) it was observed as follows:

"The right which is the foundation of an application under Article 199 of the Constitution is a personal and individual right. The legal right may be a statutory right or a right recognized by the law. A person can be said to be aggrieved only when a person is denied a legal right by someone who has a legal duty to perform relating to the right. There must not only be a right but a justiciable right in existence, to give jurisdiction to the High Court in the matter. Unless whatever right personal or otherwise, on which the application is based is established, no order can be issued under Art.199."

7. In view of the above judgments of Hon'ble Supreme Court of Pakistan and from the facts of the case, it is evident that the Petitioner is not aggrieved of any orders, acts or proceedings done or taken against him by the Respondents. Infact, the impugned order is only between the Respondent No.6 and the Respondent No.1 which has nothing to do with the Petitioner, therefore, the Petitioner is not an aggrieved person to approach this Court under Article 199 of the Constitution. Hon'ble Mr. Justice (R) Fazal Karim in his book "Judicial Review of Public Actions" has elaborated the distinction between "Aggrieved Party" and "Aggrieved Person" at page-977 Volume-2 which reads as follows:

"Distinction between "Aggrieved Party" and "Aggrieved Person"

It will be noticed that sub-clause (a) of clause (1) of Article 199 of the Constitution uses the expression "aggrieved party" while sub-clause (c) of clause (1) of that Article uses the expression "aggrieved person". On general principle, when the Legislature uses two different expressions, the intention is to convey different meanings. The

word "party" can assume importance in cases in which there had been proceedings under the relevant statute to which the applicant under Article 199 was not a party, as it did in *Haji Adam v. Settlement and Rehabilitation Commissioner*. But the word "party" as used in Article 199, clause (1) (a) means one who is competent to maintain an action, and a person not a Party to the proceeding under the relevant statute, can seek relief under Article 199, if he shows that the decision is directed against him or his property in the sense that the enforcement of the decision would involve special, immediate and in its effect a direct injury to his interest." (*Tariq Transport Company Case PLD 1958 SC (Pak) 437*).

Similarly at page-980 of the "Judicial Review of Public Actions" Locus Standi is elucidated in the following terms:

"Locus Standi is a Question for Decision, not of Discretion.

The question whether an applicant is or is not an aggrieved party or person within the meaning of Article 199 is not a matter in the discretion of the Court. "The matter is one for decision, a mixed decision of fact and law, which the Court must decide on legal principles" (Lord Wilberforce in *IRC v. Fed of Self Employed* (1981) 2 All ER 93).

Object of this Provision

The right to be satisfied about the applicant's locus standi, said Lord Scarman in *IRC v. Fed. Of Self Employed* [(1981)2 All ER 93] enables the Court to prevent abuse by busy bodies, cranks and other mischief-makers. It is as Lord Wilberforce said in the same case, an important safeguard against the Court being flooded and public bodies harassed by irresponsible applications."

8. From the perusal of record it is evident that the Petitioner is not aggrieved and has no locus standi to file this petition. In paragraph 2 of the writ he merely stated that he is serving as Sanitary Worker in the Office of TMA Kamonki, whereas the Respondent No.6 is also serving. It is important to note that the Petitioner neither has stated in the petition nor attached any document/order of the Respondents to show that he has been aggrieved of the acts/proceedings of the Respondents. In this regard the Petitioner has only prayed that the writ be accepted and the order dated 15.05.2012 of the Respondent No.1 be declared illegal, unlawful, without jurisdiction. As stated above, the said order of the Respondent No.1 is regarding the Respondent No.6 and not against the Petitioner.

9. On the touchstone of the above principles of the apex Court and the foregoing reasons, the instant petition is not maintainable and is hereby dismissed.

ZC/I-2/L

Petition dismissed.